



66 Wellington Street West, Suite 3700
Toronto, Ontario
M5K 1J5

CONTINENTAL CASUALTY COMPANY

A Stock Company hereinafter called Insurer

**HULL/MARINE LIABILITY POLICY
DECLARATION PAGE**

This policy contains a clause which may limit the amount payable

Policy No **2342905**
Previous Policy No 2342905
Code 1002

Producer:
Aon Reed Stenhouse Inc.
20 Bay Street
Toronto, ON
M5J 2N9

Item:

1. Name and mailing address of Insured

Name ERM Consultants Canada Ltd.
Address #1000 - 1100 Melville Street
City / Town Vancouver
Province / State BC
Postal Code / Zip V6E 4A6

2. Policy Period

From: November 30, 2025 **To:** November 30, 2026

12:01 A.M. Standard Time at the address of the Insured as shown above

3. Loss Payable To

Name Assured or Order
Address
City / Town
Province / State
Postal Code / Zip
For Account of Themselves

4. Summary of Coverage

	Amount or Limit of Insurance \$	Premium \$
Section 1 CNA Commercial Hull Package Policy	As Per Declaration Page(s) Attached	\$8,025
TOTAL ANNUAL PREMIUM:		\$8,025

For purposes of the Insurance Companies Act (Canada), this document was issued in the course of Continental Casualty Company's insurance business in Canada.

Dated: December 18, 2025 at Toronto, ON

Chief Agent For Canada

**HULL/MARINE LIABILITY**

Policy No.: 2342905

Attached to and forming part of the above numbered policy.

CNA COMMERCIAL HULL PACKAGE POLICY**DECLARATION PAGE(S)**

DESCRIPTION OF COVERAGE	INSURED VALUE/ LIMIT OF COVERAGE	RATE	DEDUCTIBLE	PREMIUM
<u>SECTION A:</u> HULL & MACHINERY				
14' Polaris Brigg, Serial #A-QRK90916K809	\$3,500	N/A	\$500	\$Included
12' Zodiac	\$3,500	N/A	\$500	\$Included
8HP Nissan Motor, Serial #82854	\$2,200	N/A	\$500	\$Included
Minn Kota Motor, Serial #MKAG3941243	\$200	N/A	\$50	\$Included
Bombard Boat FR-XDCR5859G405, Serial #Z55011	\$3,300	N/A	\$500	\$Included
Bombard Inflatable Boat, Serial #Z55009	\$3,500	N/A	\$500	\$Included
BRIS Inflatable Dinghy	\$1,598	N/A	\$500	\$Included
USV, Teledyne-Oceanscience Z Boat 1800HS	\$55,000	N/A	\$500	\$Included
<u>SECTION B:</u> PROTECTION & INDEMNITY				
	\$3,000,000 Limit of Liability, any one vessel, any one accident or occurrence - inclusive of legal fees, costs, expenses		\$500	\$Included
<u>EXTENSION:</u> <u>TOWERS LEGAL LIABILITY</u>				
	Included in Protection & Indemnity Limit of Liability shown above			\$Included
<u>SECTION C:</u> MEDICAL PAYMENTS				
	\$5,000		\$NIL	\$Included
<u>EXTENSION:</u> <u>PERSONAL EFFECTS</u>				
	\$2,000		\$250	\$Included
TOTAL ANNUAL PREMIUM:				\$8,025

TERMS AND CONDITIONS:

- CNA Commercial Hull Package Policy Wording, as attached, excluding Crew and Cargo liability absolutely
- Personal Effects Endorsement
- Tower's Legal Liability Endorsement
- It is hereby understood and agreed that permission is granted for the insured vessel to be used for environment research purposes, warranted TBA and/or Underwriter-approved skipper on board and in command of the insured vessel at all times. An "Underwriter-approved" skipper is one who has a minimum of 3 years of loss-free experience operating similar vessels in the same navigational waters.
- Warranted not to exceed vessel's licensed/registered seating capacity
- Warranted vessel to comply with all Canadian Coast Guard Safe Operating Rules and Regulations
- Warranted insured vessel confined to operating within the following waters: British Columbia and Northwest Territories
- All warranties are to be read as express warranties and failure to fully comply with same will void coverage under this Policy as from the time of the warranty breach.
- In the event of cancellation for reasons other than sale of vessel or non-payment of premium, 75% of the total annual premium is 100% minimum and retained.
- Sanctions Clause
- Institute Radioactive Contamination, Chemical, Biological, Bio-Chemical and Electromagnetic Weapons Exclusion Clause 10/11/2003
- Institute Cyber Attack Exclusion Clause 10/11/2003
- Policy Currency: CAD

Navigation Period: July - September

When the insured vessel(s) is/are being used for Private Pleasure Use only, It is hereby understood and agreed that the agreed Navigational Area shown above is extended to include the inland navigable lakes and waters of Continental North America



CNA COMMERCIAL HULL PACKAGE POLICY WORDING

DEFINITIONS

Throughout this policy the words "you" and "your" refer to the Named Insured shown in the Declarations. The words "we", "us" and "our" refer to the Company providing this insurance.

The word **Insured** means the Named Insured shown in the Declaration Page.

SECTION A - HULL & MACHINERY:

We cover the Vessel and equipment normally used on board for its operation and maintenance. This includes furnishings and supplies. The Vessel and its equipment are covered while afloat or stored ashore. The Vessel and its equipment are not covered while being carried on an ocean vessel or any barge or whilst being transported by rail or aircraft.

Additional Coverages

Automatic Acquisition Clause - This Policy is extended to automatically cover additional vessels and/or equipment which you may purchase, rent, lease, charter or acquire during the currency of this insurance. The liability of Underwriters hereunder shall not exceed a sum equal to the Insured Value of the highest valued vessel declared hereunder at the inception of the Policy. The Insured agrees to report such additional vessels within 30 days of such purchase, rent, lease, charter or acquisition and pro-rata additional premium to be charged by us at rates, terms and conditions to be agreed.

Land Transit Clause: This insurance is extended to cover the vessel insured while in transit by the Insured, on land by trailer.

Loss Expenses - In addition to any other payments, we will also pay for all reasonable expenses you incur for salvage of your Vessel or protecting the property from further damage following a covered loss. Our limit of coverage under this clause is the same as shown on the Declaration Page for Hull & Machinery.

Loss of Use - Should your vessel and/or motor be lost or damaged by an insured peril and it is necessary for you to rent a replacement vessel and/or motor from a recognized boat rental outlet while the vessel is being repaired or replaced, we will reimburse you for the rental cost subject to a twenty-four (24) hour waiting period. The temporary substitute vessel must be of similar type, value and length. We will not pay more than \$10,000.00 per occurrence or \$10,000.00 in the aggregate per policy term. In the event of a total loss, coverage under this extension shall only be applicable for 30 days from the date of loss.

Temporary Accommodation Expense / Repatriation Expense - This clause only applies in the event of a loss recoverable under the Policy. Where you or your crew require temporary accommodation, we will reimburse you up to \$250.00 per person per day. Should you or your crew incur travel expenses to return to home port, we will reimburse up to \$500.00 per person. We will not pay more than \$5,000.00 per occurrence or \$5,000.00 in the aggregate per policy term.

Losses Covered

We will pay for direct loss or damage of an accidental or fortuitous nature to the Vessel and its equipment from all risks not excluded.

Losses Not Covered

We will not pay for loss:

1. Caused by your failure to use reasonable care in the maintenance of the Vessel.
2. Intentionally caused by you or with your consent.
3. Caused by or resulting from any of the following defects or conditions: faulty design, faulty workmanship, the installation or use of improper or defective materials, wear and tear, gradual deterioration, or corrosion. This exclusion does not apply if a mechanical breakdown arises which is the result of negligence of a Repairer, Master or Crew, other than the Insured.
4. Freezing damage to the engine unless the Vessel has a fresh water cooling system that has been properly winterized
5. Caused by delay or loss of use.
6. Caused by otters, rodents, or any other vermin.

How We Settle a Loss

Total Loss of the Vessel and Its Equipment: We pay the Limit of Coverage shown on the Declaration Page if the Vessel is a total loss without application of the deductible. Total Loss means that:

1. the Vessel is completely lost or destroyed; or
2. the reasonable cost to recover and repair the Vessel is greater than the Limit of Coverage shown on the Declaration Page for Vessel and Equipment.

Partial Loss of the Vessel and Its Equipment: We pay the cost to repair or replace with material of like kind and quality. At our option, we pay in accordance with either generally accepted shipyard practices; or the specifications or recommendations of the Vessel's builder. Unless this insurance otherwise provides, claims for partial loss recoverable hereunder shall not be subject to depreciation.

Each loss is subject to the deductible shown on the Declaration Page. The most we will pay for a partial loss is the amount of insurance shown on the Declaration Page reduced by the deductible.

Unrepaired Damage to the Vessel and Its Equipment: In no event will we pay for unrepaired damage in addition to a total loss.

SECTION B - PROTECTION & INDEMNITY**Losses Covered**

We cover all damages or costs which an insured is legally required to pay because of:

1. Bodily injury
2. Property damage, including damage to another vessel;
3. Wreck removal, meaning expenses that result from raising, removal or destruction of the wreck of the insured Vessel when such removal is compulsory by law; or from the failure to do any of the above. But the protection under this paragraph (#3) continues for only one year from the date of the accident;
4. Rescue of persons on the insured Vessel.

The insured's liability must arise out of the ownership, maintenance or use of the insured Vessel. The injury or damage which gives rise to the liability must occur while this policy is in effect.

The Limit of Coverage for Liability shown on the Declaration Page is the most we will pay for losses covered under this section which arise from one accident or a series of accidents caused by the same event.

Losses Not Covered

1. We will not cover any damage intentionally caused by or with the consent of an insured.
2. We will not cover any cost or expense for which an insured becomes liable as a result of discharging or releasing any fuel, chemicals, waste or other pollutants. But this exclusion does not apply if the discharge or release is sudden and accidental.
3. We will not cover fines or penalties against an insured.
4. We will not cover liabilities which an insured assumes under a contract or agreement.
5. We will not cover property damage or bodily injury arising out of the transportation of the insured Vessel on land.

Additional Coverages

Defense Costs: In the event a claim is made or a suit is brought regarding a loss which is covered under the terms of this policy, we will defend the insured. Payments for the cost of legal defense will be in addition to payments we make under Coverage for Liability but subject to the Limit of Coverage for Liability written on the Declaration Page for Protection and Indemnity. Claims for liability which include defense costs shall therefore be subject to a total aggregate maximum of the amount shown for liability on the declaration page and no amount shall be payable in excess of such figure. We have the right to select the attorneys. We have the right to settle the claim or suit.

Uninsured and Underinsured Boater Protection: We will pay for bodily injuries sustained by you or any person insured by this policy, as a result of an accident with an Uninsured Third Party or Underinsured water craft, subject to the following conditions:

- An insured person must be occupying a water craft insured by this policy at the time of the accident.
- This policy will only respond for claims which you would be legally entitled to recover from the Third Party after a judgment of a court of competent jurisdiction is obtained. We are only liable for the difference between the limits payable under the Third Party's liability insurance, if any, and the sum insured granted under this extension as shown in the Declaration Page.
- This coverage will only apply in excess of any other collectable insurance available from third parties.
- The maximum amount we will pay, regardless of the number of injured persons, is \$1,000,000 any one accident or occurrence
- This coverage does not apply if a Third Party watercraft is owned by a governmental body or is owned or operated by a person insured by this policy.
- Once payment is made under this coverage, we will reserve the right to subrogate against the Third Party for any amounts we pay plus expenses.
- For the purposes of this Endorsement, an Uninsured Watercraft means a watercraft for which neither the owner nor the operator has liability insurance to cover bodily injuries or a watercraft which cannot be identified.
- This clause will not increase the limit payable under the Protection & Indemnity coverages of this Policy, as shown on the Declaration Page.

SECTION C - MEDICAL PAYMENTS

If any person is injured while boarding, on board, or alighting from the insured Vessel, we will pay reasonable medical and/or funeral expenses if incurred within one year after the date of the injury.

Limits of Payments: The Limit of Coverage shown on the Declaration Page is the most we will pay for any one accident. This overall limit applies whether one or more people are injured in the accident.

Who Will Be Paid: Medical payments may be made directly to the injured person or to the person or organization that provided the treatment.

No Admission of Liability: The fact that we make a medical payment does not mean that legal responsibility for the injury is admitted.

When We Will Not Make Medical Payments: Medical expenses are not covered under this section:

1. When the insured has contractually assumed liability for the injured person.
2. For injuries suffered by persons employed to maintain or repair the Vessel or by any other employees while they are engaged in their employment.
3. For injuries to the extent to which benefits are payable under any Provincial or Federal medical or Worker's Compensation scheme.
4. For bodily injury sustained while in, or upon boarding or leaving the insured Vessel without a reasonable belief that the injured person is entitled to be on board the insured Vessel

SECTION D - DUTIES AFTER A LOSS

If there is a loss, or claim filed, which may be covered under this policy, the insured must do the following:

1. Take all reasonable steps to protect the property from further loss. Taking steps to protect damaged property does not grant any right to abandon the property. If we take steps to protect the damaged property, it does not mean we are accepting abandonment of the property.
2. Notify your broker or agent or us immediately.
3. In case of theft, also notify the local police.
4. In case of collision or bodily injury, also notify the Coast Guard.
5. Obtain the names and addresses of involved parties or witnesses.
6. Make the Vessel available for our inspection prior to commencement of repairs.
7. Promptly give us a signed detailed statement of the loss or claim. Provide all available bills, invoices or other documents when required to prove the claim.
8. Cooperate with us in our investigation of the loss and our defense of any claim. Promptly send us any legal papers relating to the accident. The insured must not assume any liability or make any admission of fault.
9. Preserve any right of recovery from others. When we pay the loss, the right of recovery passes to us up to the amount of payment.
10. Transfer your rights in the Vessel to us, if we request it, upon payment for a Total Loss.

SECTION E - GENERAL CONDITIONS

The following rules apply to all sections of this Vessel Policy.

1. **War & Terrorism:** This policy does not cover loss, damage or liability that is caused by or results from war, warlike operations, terrorism, or any civil unrest.
2. **Transfer of Vessel or Insurance:** This policy becomes void if you sell, assign, transfer or pledge the Vessel or this policy.
3. **Illegal Use:** This policy becomes void if you use or allow your Vessel to be used for any illegal purpose.
4. **Concealment or Fraud:** This policy is void if you conceal, misrepresent or fail to disclose any material fact or circumstance pertaining to this insurance.
5. **Cancelling this Policy:** Unless we agree to the contrary in writing, this insurance shall be cancelled automatically at the time of the vessel being transferred (voluntarily or otherwise) to new management or upon the vessel being rented and/or loaned and/or chartered to others on a bareboat basis. When this policy is cancelled for these reasons, the pro-rated premium for the period from the date of cancellation to the expiration date will be refunded.

You may cancel this policy by returning it to us or by notifying us in writing when at a future date cancellation is to take effect. When you request the cancellation, the return premium will be Short Rate.

We may cancel this policy by notifying you and the named loss payee(s), if any, in writing of the date cancellation will take effect. This cancellation notice, sent by Certified or Registered mail to you at your mailing address shown on the Declaration Page, will be proof that you were notified. This notice will state when, not less than fifteen (15) days after mailing, the policy will be cancelled. When this policy is cancelled, the premium for the period from the date of cancellation to the expiration date will be refunded. When we cancel, the return premium will be Pro Rata.

Irrespective of the above, there shall be no cancellation or return of premium if we have paid for a Total or Constructive Total Loss of the vessel.

6. **Other Insurance:** If both this insurance and other insurance apply to a loss involving the insured Vessel, we will pay our share. Our share will be the proportionate amount that this insurance bears to the amount of all applicable insurance.
7. **Cross Liability (Collision):** When the loss involves a collision of the vessel with another vessel and both are to blame, the indemnity under this Policy will be calculated on the principle of cross liabilities. The liabilities of each vessel for damages to the other are to be considered in determining the sum payable by or to the Insured as a result of the collision. This calculation will take into account any limitation of liability by either vessel. The Insurer will pay for legal costs arising from contesting liability or taking proceedings to limit liability, so long as such costs are incurred with Insurers' consent.
8. **Payment of Loss:** We will pay for losses covered under this policy within 60 days after we receive proof of the loss that is satisfactory to us.
9. **Suits against Us:** Any suit against us to recover under this policy must be brought within two (2) years of the occurrence of the claim giving rise to the action unless a longer period is imposed under Canadian Maritime Law.
10. **Non-Waiver Provisions:** No action on our part, after the loss, to recover or save the property from further loss, nor any action which we may take in connection with the investigation of any loss will be considered as a waiver of any of our rights under this policy.
11. **Impairment of Recovery:** After a loss, we assume your rights to recover damages from any carrier, bailee, or other party who may be liable to you, and you are not permitted under this policy to waive any such rights.
12. **Subrogation:** If we make payment of a loss to anyone or on behalf of anyone who has a right to recover damages from others, we will take over that person's right to recover the damages, and that person must then cooperate with us in our effort to recover the amount which we paid. If we make payment for a loss to anyone or on behalf of anyone who recovers damages for that loss from others, that person will hold the proceeds of the recovery in trust for us and will reimburse us to the extent of our payment.

13. Law & Jurisdiction: This policy is subject to the Canadian Marine Insurance Act and to Canadian Federal Maritime Law.

14. Declaration of Emergency Endorsement - Extension of Termination or Expiry Date: The effective date of termination of this policy by the Insurer or the expiry date of this policy is extended, subject to the conditions and definitions set out below, as follows when an 'emergency' is declared by a Canadian public authority designated by statute for the purposes of issuing such an order.

1. The 'emergency' must have a direct effect or impact on
 - i) the Insured, the insured site or insured property located in the declared emergency area; or
 - ii) the operations of the Insurer or its agent/broker located in the declared emergency area

2.A. Any time limitation is described in the Termination condition of this policy, with respect to termination of this policy by the Insurer, will not continue to run until the 'emergency' is terminated plus the lesser of:

- i) 30 days; or
- ii) The number of days equal to the total time the 'emergency' order was in effect

2.B. If this policy is due to expire during an 'emergency', it will continue in force until the 'emergency' is terminated plus the lesser of:

- i) 30 days; or
- ii) The number of days equal to the total time the 'emergency' order was in effect

3. In no event shall the total term of this extension exceed 120 consecutive days. The insured agrees to pay the pro rata premium earned for the additional time the Insurer remains on risk as a result of the above.

'Emergency' means the first statutory declaration of an emergency:

- a) with respect to a situation or an impending situation that constitutes a danger of major proportions that could result in serious harm to persons or substantial damage to property and that is caused by the forces of nature, a disease or other health risk, an accident or an act whether intentional or otherwise; or
- b) as provided for by the relevant governing legislation if different from a).

but does not include any subsequent statutory declaration(s) that may be issued related to the same event.

Extension: Towers Legal Liability

(For attachment to CNA Commercial Hull & Machinery Package Policy)

In consideration of additional premium of \$Included and notwithstanding the provisions of exclusions within this policy elsewhere, coverage is extended to include the legal liability of the Insured arising out of ownership, use or operation of the vessel(s) in respect of loss of, or damage to, or loss of use of, her tow (including log rafts), or the property thereon, or the freight thereon, or damage done by the said tow, by collision or otherwise, in accordance with Section B: Protection & Indemnity, of this policy.

It is understood and agreed that the deductible provisions in the policy shall apply in respect of any one accident or occurrence covered by this extension.

Coverage under this extension shall not, however, increase the limit of liability insured by the policy in respect of any one accident or occurrence.

This extension shall not cover loss of, or damage to, or loss of use of, the tow (including log rafts), the property thereon, or the freight thereon, where such tow is the property of the Insured.

Extension: Personal Effects

This Policy also covers direct physical loss or damage caused by or resulting from one or more of the perils set forth in Section "A" Hull & Machinery of this Policy to personal effects and personal property of the Insured, his crew or his passengers, whilst aboard the Insured vessel(s) or being laden upon or unladen from the Insured vessel(s).

Limit of Coverage \$2,000 any one accident or occurrence.

Each claim for loss or damage shall be adjusted separately and from the amount of each adjusted claim or the applicable limit of liability, whichever is less, there shall be deducted the sum of \$250.

This Company shall pay the reasonable cost to repair or replace with material of like kind and quality up to the Limit of Coverage shown on the Declaration Page after applying the deductible. In the event the property is not replaced, our limit will be the Depreciated Cash Value.

It is understood and agreed that this endorsement does not cover loss or damage howsoever caused to:

- a) Currency, Traveler's cheques, Passports, Securities, Evidence of Debt, Valuable papers or documents.
- b) Jewellery, Furs, Cameras, Fine Arts, Eyeglasses, or Cellular phones.
- c) Unattached Fishing Gear.

Other Insurance: In the event there is other valid and collectable insurance, this coverage shall become excess over the same up to the limit specified by this extension.

SANCTIONS CLAUSE

This Policy shall not apply to any trade or activity which is subject to any applicable economic, political or trade sanction, prohibition or restriction. No Insurer nor reinsurer shall be deemed to provide cover, be liable to pay any damage or provide any benefit hereunder to the extent that the provision of such cover, payment of such damage or provision of such benefit would expose the Insurer or reinsurer or any member of the Insurers' group to any applicable economic, political or trade sanction, prohibition or restriction. The Insurer or reinsurer is obligated to comply with all applicable United Nations, European Union, US (including those imposed by the Office of Foreign Asset Control) and Canadian financial restrictions, measures and sanctions, which shall all form part of this clause.

10/11/2003

INSTITUTE RADIOACTIVE CONTAMINATION, CHEMICAL, BIOLOGICAL, BIO-CHEMICAL AND ELECTROMAGNETIC WEAPONS EXCLUSION CLAUSE

This clause shall be paramount and shall override anything contained in this insurance inconsistent therewith

1. In no case shall this insurance cover loss damage liability or expense directly or indirectly caused by or contributed to by or arising from
 - 1.1 ionising radiations from or contamination by radioactivity from any nuclear fuel or from any nuclear waste or from the combustion of nuclear fuel
 - 1.2 the radioactive, toxic, explosive or other hazardous or contaminating properties of any nuclear installation, reactor or other nuclear assembly or nuclear component thereof
 - 1.3 any weapon or device employing atomic or nuclear fission and/or fusion or other like reaction or radioactive force or matter
 - 1.4 the radioactive, toxic, explosive or other hazardous or contaminating properties of any radioactive matter. The exclusion in this sub-clause does not extend to radioactive isotopes, other than nuclear fuel, when such isotopes are being prepared, carried, stored, or used for commercial, agricultural, medical, scientific or other similar peaceful purposes
 - 1.5 any chemical, biological, bio-chemical, or electromagnetic weapon.
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INSTITUTE CYBER ATTACK EXCLUSION CLAUSE

- 1.1 Subject only to clause 1.2 below, in no case shall this insurance cover loss damage liability or expense directly or indirectly caused by or contributed to by or arising from the use or operation, as a means for inflicting harm, of any computer, computer system, computer software programme, malicious code, computer virus or process or any other electronic system.
- 1.2 Where this clause is endorsed on policies covering risks of war, civil war, revolution, rebellion, insurrection, or civil strife arising therefrom, or any hostile act by or against a belligerent power, or terrorism or any person acting from a political motive, Clause 1.1 shall not operate to exclude losses (which would otherwise be covered) arising from the use of any computer, computer system or computer software programme or any other electronic system in the launch and/or guidance system and/or firing mechanism of any weapon or missile.

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